PETITION - CLEARING A WRONGFUL ARREST OR CHARGE

IN THE ..... COURT
(Superior court - see the filing instructions in this packet)

IN RE: Maria-Alejandra O'Shaughnessy-Whitfield,
PETITIONER.

Case number, if the court assigns one at filing:
.....

PETITION FOR NOTATION OF CLEARANCE AFTER A WRONGFUL ARREST OR CHARGE, A.R.S. Sec. 13-4051

The petitioner, Maria-Alejandra O'Shaughnessy-Whitfield, applies to this court under A.R.S. Sec. 13-4051 and states:

A. THE RELIEF THIS PETITION ASKS FOR, AS THE COMMITTED RECORD STATES IT

Any person wrongfully arrested, indicted, or otherwise charged may petition the superior court for an order entering a notation on all court, police and agency records that the person has been cleared, with accompanying justification, plus an order that agencies not release copies except on court order. The statute creates a participant-initiated petition in superior court.

B. THE PETITIONER

Date of birth: 1968-12-31

C. THE FACTS OF THIS MATTER, WHICH THE PETITIONER SUPPLIES FROM THE RECORD

Each item below is printed in the words the committed record uses for it. Fill each one from the record itself.

[C1 - arrest or charge identifiers] What was the arrest, indictment or charge, and which agency and court were involved?
.....
.....

[C2 - wrongfulness facts] In your own words, why was the arrest or charge wrongful?
.....
.....

[C3 - records to annotate] Which court, police or agency records do you want the notation entered on?
.....
.....

D. THE REQUEST

The petitioner asks the court to grant the relief described in paragraph A, under A.R.S. Sec. 13-4051.

DATE ..... SIGNATURE OF PETITIONER .....

(The petitioner signs and dates this petition personally. Nothing on this page is signed or dated for the petitioner.)

PRINTED NAME: Maria-Alejandra O'Shaughnessy-Whitfield
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FILING INSTRUCTIONS - CLEARING A WRONGFUL ARREST OR CHARGE

This page is for Maria-Alejandra O'Shaughnessy-Whitfield.

WHAT THIS SET OF PAPERS IS

Petition for Notation of Clearance after a Wrongful Arrest or Charge, A.R.S. Sec. 13-4051.

Any person wrongfully arrested, indicted, or otherwise charged may petition the superior court for an order entering a notation on all court, police and agency records that the person has been cleared, with accompanying justification, plus an order that agencies not release copies except on court order. The statute creates a participant-initiated petition in superior court.

WHERE IT GOES

Superior court
A hearing is contemplated by the statute, and the judge issues the order if the judge believes justice will be served.
Venue: Statewide Arizona law; petition in superior court.

WHAT IT COSTS, AND WHETHER A WAIVER EXISTS

No committed record this packet binds states a filing fee for this route - the record says: "The source review does not state a filing fee for this petition.". The office that answers it is the clerk's office of Superior court (the venue the registry records for this route: Statewide Arizona law; petition in superior court.). No committed record states a fee-waiver procedure for this route - the record says: "The source review does not address a fee waiver.". Ask the clerk's office of Superior court (the venue the registry records for this route: Statewide Arizona law; petition in superior court.) for its own fee-waiver application.

WHO MUST BE SERVED

No committed record this packet binds states a service requirement for this route - the record says: "The source review does not state a service requirement for this petition.". The office that answers who must be served, and how, is the clerk's office of Superior court (the venue the registry records for this route: Statewide Arizona law; petition in superior court.). Notice as recorded: A hearing is contemplated by the statute.
The source review does not state a notarization requirement.

WHAT THE RECORD SAYS YOU MUST KNOW

- Explain that this remedy is different from sealing. A person with notice of the order who fails to comply is liable in damages.

WHEN TO STOP AND GET HELP INSTEAD OF FILING

- Any evidentiary dispute or contested hearing.
- The merits burden about wrongfulness, which is on the petitioner and is not a checklist.
- A denial the person wants to challenge.
- Immigration consequences are in play.
- Any evidentiary dispute or contested hearing triggers handoff.

THE PAGES IN THIS SET

- az_wrongful_arrest_clearance-primary-filing-1: the composed petition, on this route's own statutory ground (Clearing a Wrongful Arrest or Charge)